



Seizure of Cloud-based Evidence and the Philippine Cybercrime Warrant Regime:

Comments on A.M. No. 17-11-03-SC and its Implications on the
Right Against Unreasonable Searches and Seizures and the
Right to Privacy

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Introduction

Recent waves of digital transformation brought new ways of how data is processed and stored. The democratization of the internet and the web brought individuals and entities online *en masse*, which later fundamentally changed how data is shared and stored. This massive online migration of people and businesses meant that local and centralized servers hosting computer data was becoming less relevant. Thus, cloud storage has become the trend.

Cloud Data Storage Technology, also known as cloud-based data storage, is defined as a system that allows you to store and access data by combining numerous storage devices through specialized software.¹ Google Drive, Drop Box, OneDrive, and iCloud Drive are examples of commonly-used general purpose data storage services using cloud-based storage technology.

The COVID-19 pandemic accelerated the adoption of cloud-based storage as hybrid work and study, largely based on collaborative tools and workspaces, needed massive sharing and storage of data. In 2014 alone, 1.1 billion people used cloud storage. Today, the number has more than doubled to 2.3 billion users. By 2025, cloud storage, both for personal use and enterprise use, is projected to be at 200 zettabytes. Google Drive, DropBox, OneDrive, and iCloud are the dominant service providers, with 94% of personal cloud users utilizing Google Drive.²

¹ Kun Liu & Long-jiang Dong, *Research on Cloud Data Storage Technology and Its Architecture Implementation*, 29 *Procedia Eng'g* 133, 137 (2012).

² Karl Threadgold, *Personal Cloud Storage Usage: How Many People Use The Cloud? (2025)*, Threadgold Consulting (Mar. 4, 2025), <https://threadgoldconsulting.com/research/personal-cloud-storage-usage>.



The evolving digital landscape has resulted in an increase in cybercrime. The Philippine National Police (PNP) reported that 4,673 cases were recorded in 2020, a stark difference to the Philippine cybercrime situation in 2010 where only as few as 527 cases were reported.³ Additionally, the Cybercrime Investigation and Coordinating Center also recorded 10,004 complaints of cybercrime in the country. As cybercrime surge and evolve, digital evidence becomes more relevant and necessary in the prosecution of cybercrime cases.⁴ Republic Act No. 10175, also known as the Cybercrime Prevention Act of 2012, provides for the search, seizure, and examination of computer data.⁵ Provided in Section 15 of the said law is that once a warrant is issued and within the specified time provided in the said warrant, law enforcement authorities shall secure a computer system or a computer data storage medium and to make and retain a copy of those computer data secured.⁶ However, with the sophistication of digital technology and its evolution at an exponential rate, Philippine law enforcement runs the risk of being left behind as cloud storage may be used as a medium to commit crime. In Dutch context, while only a few cases of crime were observed to have used a cloud played a substantial role, nonetheless, cloud-based storage has been used to store and exchange illegal material.⁷ With the advent of cloud computing, a model that allows easy, unlimited, and on-demand access to a shared pool of computing resources through a network⁸, pose challenges for law enforcement and prosecutors at the same time raise serious implications on civil liberties.

In implementing the provisions of Republic Act No. 10175, the Supreme Court promulgated rules on cybercrime warrants, in the exercise of its rule-making power provided in Section 5 (5), Article VIII of the 1987 Constitution. A.M. No. 17-11-03-SC is the legal framework governing the

³ Jia Li, *Cybercrime In The Philippines: A Case Of National Security*, 12 Turkish J. Computer & Mathematics Educ., no. 11, 2021, <https://www.turcomat.org/index.php/turkbilmcat/article/view/6550/5407>.

⁴ *Cybercrime Complaints Triple in 2024 – CICC*, *Philippine Star* (Mar. 3, 2025), <https://www.philstar.com/headlines/2025/03/03/2425442/cybercrime-complaints-triple-2024-cicc>.

⁵ Republic Act No. 10175 (2012), *An Act Defining Cybercrime, Providing for the Prevention, Investigation, Suppression and the Imposition of Penalties Therefor and for Other Purposes*.

⁶ *Id.*

⁷ B.J. Koops et al., *Crime and Criminal Investigation In the Clouds: Summary* (Nov. 1, 2012), https://repository.wodc.nl/bitstream/handle/20.500.12832/1942/2117-summary_tcm28-72140.pdf?sequence=3&isAllowed=y.

⁸ Prantosh Kumar Paul & Mrinal K. Ghose, *Cloud Computing: Possibilities, Challenges and Opportunities with Special Reference to its Emerging Need in the Academic and Working Area of Information Science*, 38 *Procedia Eng'g* 2222, 2227 (2012), <https://doi.org/10.1016/j.proeng.2012.06.267>.



issuance of Cybercrime Warrants. A.M. No. 17-11-03-SC provides for the procedure in the application and grant of warrants in relation to the “*preservation, disclosure, interception, search, seizure, and/or examination, as well as the custody, and destruction of computer data*”⁹ under R.A. No. 10175. The Rules on Cybercrime Warrants is relatively recent as it was approved by the Supreme Court on July 3, 2018. However, the new rules make no mention of neither cloud-based storage nor remote internet-based data storage, despite the popularity and increased demand of such services, even before the promulgation of the rules.

The core issue addressed by this article is whether the current cybercrime warrant regime, specifically A.M. No. 17-11-03-SC, adequately provides for the seizure of cloud-based evidence. This insufficiency, as argued, leads to vagueness in handling cloud-based data, which in turn raises concerns about unreasonable searches and seizures of computer data and potential violations of the right to privacy.

Rules on Cybercrime Warrants (A.M. No. 17-11-03-SC)

A.M. No. 17-11-03-SC provides for the application of issuance of warrants in relation to offenses under the R.A. No. 10175, and also extend to crimes committed that are penalized under the Revised Penal Code and special laws, committed through and with the use of information and communications technologies.¹⁰ The Rules provide for guidelines for the issuance of four (4) kinds of warrants: (1) Warrant to Disclose Computer Data, (2) Warrant to Intercept Computer Data, (3) Warrant to Search, Seize, and Examine Computer Data, and (4) Warrant to Examine Computer Data.¹¹

Constitutional Rights Affected

Section 2, Article III of the 1987 Constitution provides for the prohibition of unreasonable searches and seizures, which states that:

⁹ A.M. No. 17-11-03-SC, Rule on Cybercrime Warrants (Sup. Ct. July 3, 2018), <https://oca.judiciary.gov.ph/wp-content/uploads/A.M.-No.-17-11-03-SC.pdf>.

¹⁰*Id.* at 2.

¹¹*Id.* at 8, 10–11, 14.



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“The right of the people to be secure in their persons, houses, papers, and effects against unreasonable searches and seizures of whatever nature and for any purpose shall be inviolable, and no search warrant or warrant of arrest shall issue except upon probable cause to be determined personally by the judge after examination under oath or affirmation of the complainant and the witnesses he may produce, and particularly describing the place to be searched and the persons or things to be seized.”¹²

The provision provides for the constitutional requirements of a valid search warrant: that it must be based upon probable cause; the probable cause must be determined personally by the judge; the determination must be made after examination under oath or affirmation of the complainant and the witnesses he may produce; and it must particularly describe the place to be searched and the persons or things to be seized.

In *Dimal v. Castillo*,¹³ the Supreme Court held that a search warrant validly meets the constitutional requirement of particularly describing the things to be searched and seized when *“the description therein is as specific as the circumstances will ordinarily allow”* or *“when the description expresses a conclusion of fact – not of law, by which the warrant officer may be guided in making the search and seizure”*, and *“when the things to be described are limited to those which bear direct relation to the offenses for which the warrant is being issued.”*¹⁴

Additionally, the new rules affect Paragraph 1, Section 3 of Article III which provides for the right to privacy of correspondence and communication, which states that:

“The privacy of communication and correspondence shall be inviolable except upon lawful order of the court, or when public safety or order requires otherwise as prescribed by law.”

In *Ople v. Torres*,¹⁵ the right to privacy of communication and correspondence is *“the right to be let alone.”* It is the right that prohibits the

¹²CONST. (1987), art. III, § 2 (Phil.).

¹³ *Dimal v. Castillo*, 830 Phil. 309 (S.C. Apr. 18, 2018).

¹⁴*Id.*

¹⁵ *Ople v. Torres*, G.R. No. 127685, July 23, 1998, 293 SCRA 141 (Phil.).



state from intruding into the private activities of persons where they have an expectation of privacy. Intrusion is only warranted when there is a “*lawful order of the court, or when public safety or order requires as prescribed by law.*”¹⁶

Comments on A.M. No. 17-11-03-SC and Implications on Constitutional Rights

A. Right Against Unreasonable Searches and Seizures

Cloud-based data storage finds no mention in the Rules of Cybercrime warrants, despite the prevalence and popularity of online cloud-based storage services. The closest thing indicating that the rules extends to online data storage is found in the definition of computer data under Section 1.4 (c) where computer data is referred “*to any representation of facts, information, or concepts in a form suitable for processing in a computer system, including a program suitable to cause a computer system to perform a function, and includes electronic documents and/or electronic data messages whether stored in local computer systems or online.*”¹⁷ The definition of computer data was adopted from the Implementing Rules and Regulations (IRR) of R.A. No. 10175, which includes data stored online. This is, by far, the only reference to a cloud-based data storage. Thus, it can be said that despite the popularity and widespread use of cloud-based data storage, pertinent provisions of R.A. No. 10175 and the rules provided in A.M. No. 17-11-03-SC does not have sufficient coverage of computer data stored in non-traditional computer hard drives and servers.

Reading A.M. No. 17-11-03-SC further, Section 4 (Disclosure of Computer Data) provides that law enforcement authorities may require any person or service provider to disclose computer data , such as “*subscriber's information, traffic data or relevant data in his/her or its possession or control within seventy-two (72) hours from receipt of the order.*”¹⁸ Moreover, Section 4.3 provides for the contents of an application of a Warrant to Disclose Computer Data (WDCD) where item number four in the list requires a “*particular description of the computer data or subscriber's information sought to be disclosed.*”¹⁹

¹⁶ CONST. (1987), art. III, § 2 (Phil.).

¹⁷ A.M. No. 17-11-03-SC, *supra* note at 3.

¹⁸ *Id.* at 8.

¹⁹ *Id.* at 9.



However, this does not put to rest concerns involving potential overreach in the seizure of data, even when done by virtue of a valid warrant. A single cloud account may contain an extensive amount of information data, much of which may be unrelated to the specific offense under investigation, and may therefore be vulnerable to the arbitrariness of the government or an overly broad data collection. To illustrate, in a report conducted by Metomic, 40% of Google Drive files contain sensitive data.²⁰

B. Right of Privacy of Communication and Correspondence

The Rule on Cybercrime Warrants does not provide sufficient safeguards against potential violations of the right to privacy, particularly with respect to the privacy rights of third parties. While certain areas of the digital sphere, such as public posts on social media,²¹ may carry a diminished expectation of privacy, the same cannot be said for cloud-based data storage platforms. These platforms are specifically designed to be secure, whether for personal or corporate use. Access is typically limited to individuals who possess valid login credentials, and the data stored is not publicly accessible. In corporate settings, access is often restricted to designated employees or departments; in non-corporate contexts, private individuals may share cloud storage with selected users, each of whom has the ability to upload, organize, and manage files. This controlled and limited access structure establishes a strong expectation of privacy, making warrantless or overbroad government access constitutionally suspect.

In *Ople v. Torres*,²² the Supreme Court held that the constitutional right to privacy shields individuals from excessive government data collection and intrusion, drawing upon protections for communications, against unreasonable searches, and other liberties.²³ In this case, the Court was particularly concerned that the proposed use of biometric data and linked digital records, lacking clear boundaries and safeguards, presented a significant risk to privacy.²⁴ Doctrinally, the constitution provides that governmental incursion into

²⁰Security Staff, *40 % of Google Drive Files Contain Sensitive Information*, Security Magazine, Dec. 6, 2023, <https://www.securitymagazine.com/articles/100205-40-of-google-drive-files-contain-sensitive-information>.

²¹ *Vivares v. St. Theresa's College*, G.R. No. 202666, 737 SCRA 92 (S.C. Sept. 29, 2014).

²² *Ople*, G.R. No. 127685, at 141.

²³ *Id.*

²⁴ *Id.*



the right to privacy is only justified in the context of compelling state interest and such incursion must be secured by safeguards.²⁵

Conclusion and Recommendations

Technological advancement is rapidly transforming society and bringing newer ways to do things, including how we store our data. Today, sharing data is not only easier but also more widespread. In response to these shifts and transformations, legislation has been introduced, laws have been passed, and new rules have been promulgated to bring the exercise of the state's police power into the 21st century. The increased adoption of cloud computing and cloud data storage was a game-changer. The cloud allows persons and entities to store, share, and exchange data and information in real-time, regardless of physical and geographical location.

The existing legal framework, particularly A.M. No. 17-11-03-SC, struggles to keep pace with modern data storage practices. Despite the widespread use of cloud-based data storage, the rules on cybercrime warrants offer only a single, broad definition of "computer data" that hints at its inclusion, lacking specific provisions for cloud-based information. This gap creates significant concerns regarding the right against unreasonable searches and seizures. Even when authorities obtain a warrant, a single cloud account can hold vast amounts of data, much of which may be irrelevant to an investigation, opening the door to potentially arbitrary government overreach and overly broad data collection, as evidenced by reports showing sensitive data prevalence in cloud drives.

Furthermore, the Rule on Cybercrime Warrants falls short in safeguarding the right to privacy of communication and correspondence, especially concerning third parties. Unlike public social media content, cloud storage platforms are designed for privacy and security, with restricted access, fostering a strong expectation of privacy.

The current legal framework and cybercrime warrant regime lags behind the realities of modern cloud-computing and cloud-based data storage, leaving a significant void in adequately protecting fundamental rights. This deficiency creates a clear risk of unreasonable searches and seizures, as

²⁵ *Id.*



broad warrants can indiscriminately sweep up vast amounts of unrelated private data from cloud accounts. Moreover, the rules fail to sufficiently uphold the right to privacy of communication and correspondence, especially for third parties, despite the inherent security and private nature of cloud platforms.

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